

Version
as at 3 October 2024



Protection of Personal and Property Rights Regulations 1988 (SR 1988/229)

Ronald Davison
Administrator of the Government

Order in Council

At Wellington this 3rd day of October 1988

Present:

His Excellency the Administrator of the Government in Council

Pursuant to section 112 of the Protection of Personal and Property Rights Act 1988, His Excellency the Administrator of the Government, acting by and with the advice and consent of the Executive Council, hereby makes the following regulations.

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Note

The Parliamentary Counsel Office has made editorial and format changes to this version using the powers under subpart 2 of Part 3 of the Legislation Act 2019.

Note 4 at the end of this version provides a list of the amendments included in it.

These regulations are administered by the Ministry of Justice.

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Regulations

- 1 Title and commencement**
- (1)

These regulations may be cited as the Protection of Personal and Property Rights Regulations 1988.
- (2)

These regulations shall come into force on 1 November 1988.
- 2 Interpretation**
- In these regulations, unless the context otherwise requires, **the Act** means the Protection of Personal and Property Rights Act 1988.
- 2A Transitional, savings, and related provisions**
- The transitional, savings, and related provisions set out in Schedule 1 have effect according to their terms.

Regulation 2A: inserted, on 3 October 2024, by regulation 4 of the Protection of Personal and Property Rights Amendment Regulations 2024 (SL 2024/186).
- 3 Statement of property at commencement of managership**
- (1)

Every statement required by section 45(2)(a) of the Act to be filed by a manager within 3 months after the date of the commencement of his or her managership shall be in form 1 of Schedule 2.
- (2)

Every such statement shall contain the following particulars:

(a)

a description of the property to which the property order relates:

(b)

an estimated value of the property, together with an indication of the method of valuation used to value the property:

(c)

particulars of the condition of the property:

(d)

particulars of rent, interest, and other income (if any) payable to the person for whom the manager is acting and derived from any property to which the property order relates:

- (e) the names of the persons by whom any such rent, interest, or other income is payable:
- (f) particulars of the liabilities (whether present, future, or contingent) of the person for whom the manager is acting, being liabilities that the manager has power to meet.

Regulation 3(1): amended, on 3 October 2024, by regulation 5 of the Protection of Personal and Property Rights Amendment Regulations 2024 (SL 2024/186).

4 Annual statement of management

- (1) Every statement required by section 45(2)(b) of the Act to be filed by a manager within 30 days after the expiry of each year during which his or her managership continues shall be in form 2 of Schedule 2.
- (2) Every such statement shall contain the following particulars:
 - (a) particulars of the matters specified in paragraphs (a), (b), and (f) of regulation 3(2), updated to the end of the year to which the statement relates:
 - (b) in respect of each matter specified in paragraphs (c) to (e) of regulation 3(2), particulars of any changes that have occurred during the year or (as the case may require) a statement that no changes have occurred during the year:
 - (c) full and detailed accounts for the year, showing the receipts and payments for the year, and including the following matters:
 - (i) the gross amounts received from the sale of any property to which the property order relates, including any sums received but retained or deducted by any solicitor, auctioneer, commission agent, broker, or other agent:
 - (ii) the gross income derived (whether by way of rent, interest, or otherwise) from each item of property to which the property order relates, including any sums received but retained or deducted by any solicitor, auctioneer, commission agent, broker, or other agent:
 - (iii) payments to or on behalf of the person for whom the manager is acting, and payments to or on behalf of the spouse or any child of that person:
 - (iv) other disbursements, including any sums received but retained or deducted by any solicitor, auctioneer, commission agent, broker, or other agent.
- (3) For the purpose of such accounts, periodical receipts or payments of the same kind may be aggregated.

Regulation 4(1): amended, on 3 October 2024, by regulation 6 of the Protection of Personal and Property Rights Amendment Regulations 2024 (SL 2024/186).

5 Final statement of management

- (1) Every statement required by section 45(2)(c) of the Act to be filed by a person within 30 days after the date on which the person ceases in accordance with section 52 of the Act to hold office as manager shall be in form 3 of Schedule 2.
- (2) Every such statement shall contain the following particulars:
 - (a) particulars of the matters specified in paragraphs (a) to (f) of regulation 3(2), updated to the date on which the person ceased to hold office as manager:
 - (b) full and detailed accounts, showing the receipts and payments for the period commencing with the day after the last anniversary of the date on which the management commenced and ending with the date on which management ceased, including the matters specified in subparagraphs (i) to (iv) of regulation 4(2)(c).
- (3) For the purpose of such accounts, periodical receipts or payments of the same kind may be aggregated.

Regulation 5(1): amended, on 3 October 2024, by regulation 7 of the Protection of Personal and Property Rights Amendment Regulations 2024 (SL 2024/186).

6 Remuneration of Public Trust or accountant for examining manager's statement

- (1) Where Public Trust, or a chartered accountant appointed by Public Trust, examines any statement and files a report on it in the court under section 46 of the Act, remuneration shall be payable to Public Trust or the chartered accountant for those services at the rate of \$247.27 per hour.
- (2) The fee fixed by subclause (1) is inclusive of goods and services tax under the Goods and Services Tax Act 1985.

Regulation 6 heading: amended, on 1 March 2002, by section 170(4) of the Public Trust Act 2001 (2001 No 100).

Regulation 6(1): amended, on 3 October 2024, by regulation 8 of the Protection of Personal and Property Rights Amendment Regulations 2024 (SL 2024/186).

Regulation 6(1): amended, on 1 March 2002, by section 170(4) of the Public Trust Act 2001 (2001 No 100).

7 Notice of existing managership

- (1) The notice required by subsection (6) of section 117 of the Act to be given to a court by any person who is deemed by subsection (3) or subsection (4) of that section to be a manager appointed under the Act shall be given to the court in which, if an application were to be made for a property order in respect of the person for whom the manager is acting, such an application would be filed.
- (2) Every such notice shall be in form 4 of Schedule 2.

Regulation 7(2): amended, on 3 October 2024, by regulation 9 of the Protection of Personal and Property Rights Amendment Regulations 2024 (SL 2024/186).

8 Programme for reviewing existing managerships

- (1) As soon as practicable after giving notice in accordance with subsection (6) of section 117 of the Act of each case in which it is deemed by subsection (3) or subsection (4) of that section to be a manager appointed under the Act, a trustee corporation shall prepare and file in the court in which the notice was filed a draft programme for the progressive review of all such cases.
- (2) Subject to subclause (3), the draft programme shall provide as follows:
 - (a) that the cases shall be reviewed in chronological order according to the date on which the trustee corporation was appointed manager:
 - (b) that the cases falling within given periods of time shall be reviewed by the date nominated in respect of each such period.
- (3) The draft programme may specify in respect of any particular case a date by which that case shall be reviewed, and that date may be earlier or later than the relevant date nominated under subclause (2)(b).
- (4) After considering the draft programme, and hearing the trustee corporation and any other person that the court thinks fit to hear, the court shall approve or modify the programme; and the dates specified by the court for the review of any case or class of case shall be the date of the first review for the purposes of section 87 of the Act.

9 Transfer of records

- (1) This regulation applies to every case where, immediately before the commencement of the Act, any person was acting as manager of any estate or property under the Aged and Infirm Persons Protection Act 1912.
- (2) In any case to which this regulation applies, the relevant records of the High Court shall be transferred to the appropriate District Court upon request by the Registrar of that District Court.

10 Revocations

The following rules and order are hereby revoked:

- (a) the Aged and Infirm Persons Protection Rules 1936 (*Gazette* 1936, Vol II, p 1223):
- (b) the Mental Health (Specified Sum) Order 1986 (SR 1986/295).

Schedule 1

Transitional, savings, and related provisions

r 2A

Schedule 1: inserted, on 3 October 2024, by regulation 10 of the Protection of Personal and Property Rights Amendment Regulations 2024 (SL 2024/186).

Part 1

Provision relating to Protection of Personal and Property Rights Amendment Regulations 2024

Schedule 1 part 1: inserted, on 3 October 2024, by regulation 10 of the Protection of Personal and Property Rights Amendment Regulations 2024 (SL 2024/186).

- 1 Remuneration of Public Trust or chartered accountant for services provided under section 46 of Act before 3 October 2024**
- (1) This clause applies if a report is filed in a court under section 46 of the Act on or after 3 October 2024 in respect of which pre-commencement date services were performed by Public Trust or a chartered accountant appointed by Public Trust.
 - (2) Remuneration is payable to Public Trust or the chartered accountant for the pre-commencement date services at the rate specified in regulation 6 as in force immediately before 3 October 2024.
 - (3) In this clause, **pre-commencement date services** means services—
 - (a) described in regulation 6(1); and
 - (b) performed before 3 October 2024.

Schedule 1 clause 1: inserted, on 3 October 2024, by regulation 10 of the Protection of Personal and Property Rights Amendment Regulations 2024 (SL 2024/186).

Schedule 2

Forms

Schedule 2 schedule number: replaced, on 3 October 2024, by regulation 11 of the Protection of Personal and Property Rights Amendment Regulations 2024 (SL 2024/186).

Form 1

r 3(1)

Section 45(2)(a), Protection of Personal and Property Rights Act 1988

Statement of property

[*Full name of the manager*] was appointed by this court (*or* the court at [*specify*]) on [*date*] to act as manager of the property (*or* of certain property) of [*full name of the person for whom the manager is acting*] of [*address*], [*occupation*].

or

[*Name of the manager*] filed in this court (*or* the court at [*specify*]) on [*date*] a copy of an application under section 32 (*or* section 33) of the Protection of Personal and Property Rights Act 1988 and thereby became the manager of the property (*or* of certain property) of [*full name of the person for whom the manager is acting*] of [*address*], [*occupation*].

This is the manager's statement of property required by section 45(2)(a) of the Protection of Personal and Property Rights Act 1988.

The manager states:

- 1 [*Describe the property to which the property order relates, and give an estimated value of the property.*]
- 2 [*State the method of valuation used in valuing the property.*]
- 3 [*Describe the condition of the property.*]
- 4 [*State the amounts payable to the person for whom the manager is acting by way of rent, interest, or other income derived from the property.*]
- 5 [*State the liabilities (whether present, future, or contingent) of the person for whom the manager is acting, being liabilities that the manager has power to meet, and give the amount or estimated amount of each liability.*]

Dated at: [*place, date*]

[*signature*]

Manager

Form 2

r 4(1)

*Section 45(2)(b), Protection of Personal and Property Rights Act 1988****Annual statement of management***

[*Full name of the manager*] was appointed by this court (*or the court at [specify]*) on [date] to act as manager of the property (*or of certain property*) of [*full name of the person for whom the manager is acting*] of [address], [occupation].

or

[*Name of the manager*] filed in this court (*or the court at [specify]*) on [date] a copy of an application under section 32 (*or section 33*) of the Protection of Personal and Property Rights Act 1988 and thereby became the manager of the property (*or of certain property*) of [*full name of the person for whom the manager is acting*] of [address], [occupation].

This is the manager's statement required by section 45(2)(b) of the Protection of Personal and Property Rights Act 1988 in respect of the year ending on [date].

The manager states:

Part A

- 1 [*Describe the property to which the property order relates, and give an estimated value of the property as at the end of the year to which the statement relates.*]
- 2 [*State the method of valuation used in valuing the property.*]
- 3 [*State whether or not there has been during the year any change in the condition of the property (other than by virtue of fair wear and tear), and, if there has been any such change, give particulars of the present condition of the property.*]
- 4 [*State whether or not there has been during the year any change in the amounts payable to the person for whom the manager is acting, whether by way of rent, interest, or other income, derived from the property, or in the persons by whom the amounts are payable, and, if there has been any such change, give particulars of the present position. If this information is contained in the accounts filed under Part B of this form, it is sufficient to draw attention to the relevant item or items in those accounts.*]
- 5 [*State the liabilities (whether present, future, or contingent) of the person for whom the manager is acting in respect of the property as at the end of the year, being liabilities that the manager has power to meet, and give the amount or estimated amount of each liability. If this information is contained in the accounts filed under Part B of this form, it is sufficient to draw attention to the relevant item or items in those accounts.*]

Part B

The following are the accounts for the year:

[Set out or attach full and detailed accounts for the year, showing the receipts and payments for the year, and including the following matters:]

- (a) *the gross amounts received from the sale of any property to which the property order relates, including any sums received but retained or deducted by any solicitor, auctioneer, commission agent, broker, or other agent:*
- (b) *the gross income derived (whether from rents, interest, or otherwise) from each item of property to which the property order relates, including any sum received but retained or deducted by any solicitor, auctioneer, commission agent, broker, or other agent:*
- (c) *payments to or on behalf of the persons for whom the manager is acting, and payments to or on behalf of the spouse or any child of that person:*
- (d) *other disbursements, including any sums received but retained or deducted by any solicitor, auctioneer, commission agent, broker, or other agent.]*

Dated at: *[place, date]*

[signature]

Manager

Form 3

r 5(1)

*Section 45(2)(c), Protection of Personal and Property Rights Act 1988****Final statement of management***

[*Full name of the former manager*] was appointed by this court (*or the court at [specify]*) on [*date*] to act as manager of the property (*or of certain property*) of [*full name of the person for whom the manager was acting*] of [*address*], [*occupation*].

or

[*Name of former manager*] filed in this court (*or the court at [specify]*) on [*date*] a copy of an application under section 32 (*or section 33*) of the Protection of Personal and Property Rights Act 1988 and thereby became the manager of the property (*or of certain property*) of [*full name of the person for whom the manager was acting*] of [*address*], [*occupation*].

This is the former manager's statement required by section 45(2)(c) of the Protection of Personal and Property Rights Act 1988 in respect of the period ending on [*date*].

The former manager states:

Part A

- 1 [*Describe the property to which the property order related, and give an estimated value of the property as at the end of the period to which the statement relates.*]
- 2 [*State the method of valuation used in valuing the property.*]
- 3 [*Describe the condition of the property as at the end of the period to which the statement relates.*]
- 4 [*State the amounts payable to the person for whom the manager was acting by way of rent, interest, or other income derived from the property, and the persons by whom they were payable, as at the end of the period to which the statement relates. If this information is contained in the accounts filed under Part B of this form, it is sufficient to draw attention to the relevant item or items in those accounts.*]
- 5 [*State the liabilities (whether present, future, or contingent) of the person for whom the manager was acting, as at the end of the period to which the statement relates, being liabilities that the manager has power to meet, and give the amount or estimated amount of each liability. If this information is contained in the accounts filed under Part B of this form, it is sufficient to draw attention to the relevant item or items in those accounts.*]

Part B

The following are the accounts for the period:

[Set out or attach full and detailed accounts for the period showing the receipts and payments for the period, and including the following matters:

- (a) the gross amounts received from the sale of any property to which the property order related, including any sums received but retained or deducted by any solicitor, auctioneer, commission agent, broker, or other agent:*
- (b) the gross income derived (whether from rent, interest, or otherwise) from each item of property to which the property order related, including any sum received but retained or deducted by any solicitor, auctioneer, commission agent, broker, or other agent:*
- (c) payments to or on behalf of the persons for whom the manager is acting, and payments to or on behalf of the spouse or any child of that person:*
- (d) other disbursements, including any sums received but retained or deducted by any solicitor, auctioneer, commission agent, broker, or other agent.]*

Dated at: *[place, date]*

[signature]

Former manager

Form 4

Notice by trustee corporation of existing managerships

r 7(2)

Section 117(6), Protection of Personal and Property Rights Act 1988

To the Registrar
District Court at *[specify]*
[Name of trustee corporation], being a trustee corporation within the meaning of the Protection of Personal and Property Rights Act 1988, notifies you of the following cases in which, by virtue of subsection (3) or subsection (4) of section 117 of that Act, the corporation is deemed to be a manager appointed under that Act.

Surname (alphabetical order)	Given name(s)	Date on which Corporation appointed as manager	Act under which Corporation appointed as manager
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Signed by *[name and designation of officer]* on behalf of *[name of trustee corporation]*

At:
Date:

Marie Shroff,
Clerk of the Executive Council.

Issued under the authority of the Legislation Act 2019.
Date of notification in *Gazette*: 6 October 1988.

Notes

1 *General*

This is a consolidation of the Protection of Personal and Property Rights Regulations 1988 that incorporates the amendments made to the legislation so that it shows the law as at its stated date.

2 *Legal status*

A consolidation is taken to correctly state, as at its stated date, the law enacted or made by the legislation consolidated and by the amendments. This presumption applies unless the contrary is shown.

Section 78 of the Legislation Act 2019 provides that this consolidation, published as an electronic version, is an official version. A printed version of legislation that is produced directly from this official electronic version is also an official version.

3 *Editorial and format changes*

The Parliamentary Counsel Office makes editorial and format changes to consolidations using the powers under subpart 2 of Part 3 of the Legislation Act 2019. See also PCO editorial conventions for consolidations.

4 *Amendments incorporated in this consolidation*

Protection of Personal and Property Rights Amendment Regulations 2024 (SL 2024/186)

Public Trust Act 2001 (2001 No 100): section 170(4)